

9:00 AM

Line 7

26-CIV-01579 AMPHLETT PROPERTY LLC VS. JIHANE HANNA BECHWATI, ET AL

AMPHLETT PROPERTY LLC
JIHANE HANNA BECHWATI

SCOTT TALKOV
PEIYU (PAULINA) LI

Plaintiff/Cross-Defendant's Anti-SLAPP Motion to Strike First Amended Cross-Complaint

TENTATIVE RULING:

The Anti-SLAPP Motion to Strike First Amended Cross-Complaint (the "Motion") brought by Plaintiff and the other Cross-Defendants (collectively, "Movants" or "Cross-Defendants") is GRANTED as to the first two causes of action of the Cross-Complaint.

Background

Plaintiff Amphlett Property LLC ("Plaintiff") brings this action seeking partition of commercial real property located at 301-307 N. Amphlett Blvd., San Mateo, CA, 94401 ("property"). The Complaint alleges that Plaintiff owns an undivided 40% interest as tenants in common with Defendant Nicolas Bechwati, who is alleged to own an undivided 35% interest in the property, and Defendant Jihane Hanna Bechwati, who is alleged to own an undivided 25% interest in the property. The Complaint seeks partition of the property as well as back rent and future rent from EPS, Inc., a tenant at the property.

Defendant EPS, Inc. ("Tenant"), is owned and operated by Defendant Nicolas Bechwati, and leases or currently occupies the Property, though there has been no new lease, extension, written modification, nor rent adjustment since the written lease governing its tenancy expired in 2017. Defendant Nicolas Bechwati has allegedly ignored Plaintiff's objections to Tenant's nonpayment of rent and payment of below-market rent. The Court notes that Defendant Nicolas Bechwati's ownership and control of both the Property and Tenant creates a fairly clear conflict of interest.

Defendant Tenant cross-complained against Plaintiff/Cross-Defendant Amphlett Property LLC ("Plaintiff"), its member and manager Cross-Defendant Carol Weinbrock, and its other member, Cross-Defendant Jennifer Orman, alleging *inter alia* that Tenant, which performs engineering work for residential, commercial, and government clients, including the City of San Mateo (the "City"), had a right under the written lease to notice and an opportunity to purchase the Property before it could be offered to another. In December 2025, it is alleged that although Plaintiff's agent knew or had reason to know that the City was Tenant's client, Plaintiff's agent contacted the City to inquire about alleged Code violations involving the Property. During the City's involvement with the Property, its employee asked Defendant Nicolas Bechwati whether the Property Tenant's business was being sold. Tenant was forced to expend resources to deal with the City's inspection activity, business disruption, uncertainty regarding its continued operations

and possession, and reputational risk concerning its regulatory compliance. Tenant alleges that Plaintiff involved the City with the Property in an attempt to force a sale or other disposition of the Property, rather than to preserve Tenant's tenancy, business operations, or quiet possession. Further, Plaintiff's Complaint seeks relief that would interfere with Tenant's possession of the Property, its personal property, and its business operations, and would bypass Tenant's rights under the lease and related agreements, including that of first offer.

Through the Motion, Movants move to strike the first two causes of action of the First Amended Cross-Complaint ("FACC"), and request award of attorney's fees in the amount of \$9,563.50.

Legal Standards Governing the Motion

The "anti-SLAPP statute is designed to protect defendants from meritless lawsuits that might chill the exercise of their rights to speak and petition on matters of public concern." (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 883-884 (citations omitted).) However, the "anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 (*Baral*).)

The Code of Civil Procedure provides that a cause of action shall be subject to a special motion to strike (herein, also called an "anti-SLAPP motion") when that cause of action arises from an act in furtherance of the right to petition or free speech, unless the Court determines that the plaintiff has established a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1).) The Court engages in a two-step process in evaluating an anti-SLAPP motion: determining first whether the moving defendant bears its burden of establishing that the challenged allegations arise from protected activity; and second, whether the plaintiff has then met its burden of demonstrating that the claims have at least "minimal merit." (*Park v. Bd. of Trustees of Calif. State Univ.* (2017) 2 Cal.5th 1057, 1061 (*Park*).) "If the plaintiff cannot make this showing, the court will strike the claim." (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 (*Bonni*), citing *Park*, *supra*.)

In evaluating the protected nature of the act under the first prong of the anti-SLAPP analysis, the Court shall look to the pleadings and supporting or opposing affidavits stating the acts upon which the liability or defense is based. (Code Civ. Proc., § 425.16, subd. (b)(2); *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) The defendant need only make a threshold *prima facie* showing that the defendant's acts "arise[] from" constitutionally protected free speech or petition activity. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 456.)

On the second prong of anti-SLAPP analysis, the Court looks to whether the plaintiff has met his burden in establishing that the claims have at least minimal merit:

This court and the Courts of Appeal, noting the potential deprivation of jury trial that might result were [section 425.16 and similar] statutes construed to require the plaintiff first to *prove* the specified claim to the trial court, have instead read the statutes as requiring the court to determine only if the plaintiff has stated and substantiated a legally sufficient claim.

(Briggs v. Eden Council For Hope & Opportunity (1999) 19 Cal.4th 1106, 1123 (*Briggs*))

(citation omitted).) As the Supreme Court of California explains:

For the benefit of litigants and courts involved in this sometimes difficult area of pretrial procedure, we provide a brief summary of the showings and findings required by section 425.16(b). At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, *unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.*

(*Baral, supra*, 1 Cal.5th 376, 396 (emphasis added).)

*Movants Have Made a Prima Facie Showing Satisfying the First Prong
of the Anti-SLAPP Analysis.*

The first two causes of action clearly are based on the alleged wrongfulness of Plaintiff's having brought the instant partition action, and on Movants' having contacted the City regarding a potential code violation at the Property. As to the former, filing a lawsuit constitutes protected activity under the governing statute. (*Callanan v. Grizzly Designs, LLC* (2022) 81 Cal.App.5th 517, 526 (*Callanan*).) Plaintiff's intent in bringing this action is irrelevant to an anti-SLAPP analysis. (*Callanan, supra*, 81 Cal.App.5th 517, 530-31.) In addition, as the Supreme Court of California explains, "We contemplate no communication that is more clearly protected by the litigation privilege than the filing of a legal action." (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1249.)

As to the latter under the anti-SLAPP statute, "the Legislature's intent consistently has been to protect all direct petitioning of governmental bodies (including, as relevant here, courts and administrative agencies) and petition-related statements and writings." (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1121 (*Briggs*).) Also, the Supreme Court of California explains that "the privilege established by [Civil Code] section 47(b) applies, in general, to a 'communication to an official agency which is designed to prompt action[.]'" (*Hagberg v. Cal. Federal Bank* (2004) 32 Cal.4th 350, 370 (*Hagberg*) (citation omitted) (superseded by statute on other grounds, which create an exception for filing a false police report).)

Moreover:

When moving to strike a cause of action under the anti-SLAPP statute, a defendant that satisfies its initial burden of demonstrating the targeted action is one arising from protected activity faces no additional requirement of proving the plaintiff's subjective intent. Nor need a moving defendant demonstrate that the action

actually has had a chilling effect on the exercise of such rights.

(*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88 (*Navellier*) (citations omitted).) Since the focus of the anti-SLAPP statute is the nature of the movant's activity and not the form of the challenged cause of action, allegation that the activity constitutes breach of contract does not affect whether the activity falls within the protection of the anti-SLAPP statute. (*Navellier, supra*, 29 Cal.4th 82, 90-93.)

Movants have met their burden of establishing that the challenged allegations arise from protected activity.

Cross-Complainants Fail to Meet Their Burden on the Second Prong.

As discussed above, Movants' activity of which Cross-Complainants complain is protected by the anti-SLAPP statute. "The litigation privilege is also relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense a plaintiff must overcome to demonstrate a probability of prevailing." (*Flatley, supra*, 39 Cal.4th 299, 323 (citations omitted).) This is the case here, where Movants' protected activities are the gravamen of the challenged causes of action. Indeed, Cross-Complainants cite the partition as an unacceptable interference with their use of the co-owned Property. Further, Tenant's evidence, the Declaration of Nicolas Bechwati in Opposition, essentially explains why Movants' having contacted the City about alleged Code violations, and also the partition action, raised the Tenant's owner and operator's concerns that he might not be able to operate his business from the Property.

The Opposition argues misleadingly as though Movants attempt to use the partition action solely and retroactively as the basis for the Motion, without addressing Movants' assertions that Plaintiff's contacting the City is protected activity as well. Tenant asserts that:

EPS also has evidence supporting the alleged interference. The City of San Mateo was an EPS municipal customer. Amphlett's agent approached the City concerning alleged code issues at EPS's business premises; the City thereafter inspected the Property; and a Public Works employee asked Nicolas whether the Property or EPS's business was being sold. EPS alleges that these circumstances resulted in business disruption, uncertainty concerning continued occupancy, customer-relationship concerns, and expenditures of time and resources.

(Opp., 13:27-14:4.) As discussed *supra*, the interference complained of falls within the scope of the litigation privilege (*Briggs, supra*, 19 Cal.4th 1106, 1121; *Hagberg, supra*, 32 Cal.4th 350, 370), and thus presents a substantive defense which must be overcome to demonstrate a probability of prevailing. (*Flatley, supra*, 39 Cal.4th 299, 323 (citations omitted).) That is, even if the challenged causes of action are based entirely on activity protected under the anti-SLAPP statute, they may stand under the second prong of the analysis if the opponent shows a minimum probability that they could succeed on the merits. Nonetheless, no such showing can be made here because the activity complained of is *also* protected by the litigation privilege (Civ. Code, § 47, subd. (b)).

Accordingly, the anti-Slapp Motion is GRANTED, and the first two causes of action (1. Negligence and 2. Breach of the Covenant of Quiet Enjoyment) in the FACC are hereby stricken in their entirety.

Movants Are Entitled to Fees and Costs.

In pertinent part, the governing statute provides that, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1).)

Attorney Talkov’s declaration establishes his hourly rate of \$850 which the Court accepts as reasonable for this motion, and expenditure of 2.1 hours for the motion. He also seeks 2.3 estimated hours for review of the opposition and drafting of a reply, and .8 hours for review of the tentative ruling and appearance, for a total of 5.2 hours.

Attorney Duggan’s declaration establishes his hourly rate of 635 which the Court accepts as reasonable for this motion, and expenditure of 4.5 hours for the motion. He also seeks 2.3 estimated hours for review of the opposition and drafting of a reply, and 1.3 hours for review of the tentative ruling and appearance, for a total of 8.1 hours.

The total fee request for the above is \$9,563.50. The Court notes that the opposition brief was 19 pages and accompanying opposition declaration was 31 pages, and neither argues against the reasonableness of the hourly rate nor time spent or as estimated; further the reply brief was 14 pages, therefore the estimated time spent is also reasonable. The Court therefore GRANTS Movants’ request for fees in the amount of \$9,563.50, payable within 30 days of the Order after hearing. If this tentative is contested and parties appear for argument, then Movant’s counsel is directed to advise the Court whether the time estimated above was at least met.

Discovery Stay

The Court is aware that Defendants have filed a Motion for Protective Order Limiting Discovery that is currently set for hearing on March 26, 2027. In that regard, the parties failed to have an Informal Discovery Conference (“IDC”) before the filing of this motion, and the Court does remind the parties of that option, as an IDC before the Civil Commissioner would very well have resolved this issue without the need for motion practice.

In any event, for judicial economy, the Court will be vacating the March 26, 2027 hearing date as it is now moot, and instead addresses the dispute herein as it is directly related to this Anti-SLAPP ruling.

On July 15, 2026, Cross-Defendants filed the present Anti-SLAPP motion. Relevantly, the filing of this motion automatically stayed all discovery. CCP Section 425.16 provides in pertinent part:

(g) All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.

CCP § 425.16(g).

On July 31, 2026, Plaintiff served Defendants with a full set of discovery comprised of Form Interrogatories, Special Interrogatories, Requests for Production and Requests for Admissions (Sets One). Cornejo Decl. filed 8/31/2026, ¶¶ 5-9, Exh.'s A-D. The service of this discovery violated the automatic stay on discovery, which means Defendants had no duty to respond and no objections were waived.

As this tentative is now adjudicating the Anti-SLAPP, the discovery stay will be lifted per code. Accordingly and per Defendants' request (see, MPA iSo Mtn. for Protective Order, pg. 5, lines 20-26), Defendants' responses to this discovery will be due thirty (30) days after service of notice of entry of the order after this hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 8/UD Line 1

26-UDU-00699 RUSSELL MARSHALL, AS TEMPORARY TRUSTEE OF THE EDWARD E.
CAMPBELL REVOCABLE LIVING TRUST DATED JUNE 4, 1981 VS.
HALLEY CRUMB

RUSSELL MARSHALL, AS TEMPORARY TRUSTEE
OF THE EDWARD E. CAMPBELL REVOCABLE LIVING
TRUST DATED JUNE 4, 1981

PAUL L SEELEY

HALLEY CRUMB

PRO SE

Plaintiff's Motion to Compel Discovery from Defendant

TENTATIVE RULING:

Plaintiff's Motion to Compel Discovery from Defendant is GRANTED.

Summary of Facts

This is a residential unlawful detainer arising from the service of a three-day notice to pay rent or quit. Plaintiff moves here to compel defendant to respond to discovery.

Procedural History

On July 30, 2026, Plaintiff served Defendant with Form Interrogatories-General, Set One, Form Interrogatories- Unlawful Detainer, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admissions, Set One. Defendant served responses to the special interrogatories and requests for admission 1-7. However, to date, no responses to Plaintiff's form interrogatories, requests for production or requests for admission 8-53 have been received. Consequently, CCP §2030.290(b) and CCP §2031.300(b) provide for an order compelling responses to the interrogatories and requests for production of documents, while with respect to the requests for admission, CCP 2033.280(b) permits the court to enter an order deeming the matters in the requests to be deemed admitted.

Defendant has filed an opposition to the motions, and there is an attached Proof of Service ("POS"). However, the POS is defective in that it indicates her opposition and declaration were served on September 14, 2026 by multiple methods including personal service, email and some other unidentified method permitted in unlawful detainer proceedings. It does not state the address of the person serving the documents nor does it state the address where the documents were served. No email address or physical address is stated. Therefore, it is unclear whether or not Plaintiff's attorney was actually even served.

Analysis

Discovery responses are mandatory for the various types of discovery allowed or at-issue. See, CCP §§ 2017.010, 2030.210, 2031.210 and 2033.210. Due to the complete failure to respond, all objections have been waived. CCP §§ 2030.290, 2031.300 and 2033.280. Discovery responses must be properly verified (CCP §§ 2030.250, 2031.250 and 2033.240), and unverified responses are tantamount to not responding at all. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635-636.

Plaintiff's motion to compel is granted. Defendant shall provide verified responses and responsive documents, without objection, to plaintiff's Form Interrogatories-General, Set One, Form Interrogatories- Unlawful Detainer, Set One, and Requests for Production of Documents, Set One, within five days.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 9/UD Line 2

26-UDU-00699 RUSSELL MARSHALL, AS TEMPORARY TRUSTEE OF THE EDWARD E.
CAMPBELL REVOCABLE LIVING TRUST DATED JUNE 4, 1981 VS.
HALLEY CRUMB

RUSSELL MARSHALL, AS TEMPORARY TRUSTEE
OF THE EDWARD E. CAMPBELL REVOCABLE LIVING
TRUST DATED JUNE 4, 1981

PAUL L SEELEY

HALLEY CRUMB

PRO SE

Plaintiff's Motion to Deem Requests for Admission Admitted Against Defendant

TENTATIVE RULING:

Summary of Facts

This is a residential unlawful detainer arising from the service of a three-day notice to pay rent or quit. Plaintiff moves here to compel defendant to respond to discovery.

Procedural History

On July 30, 2026, Plaintiff served Defendant with Form Interrogatories-General, Set One, Form Interrogatories- Unlawful Detainer, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admissions, Set One. Defendant served responses to the special interrogatories and requests for admission 1-7. However, to date, no responses to Plaintiff's form interrogatories, requests for production or requests for admission 8-53 have been received. Consequently, CCP §2030.290(b) and CCP §2031.300(b) provide for an order compelling responses to the interrogatories and requests for production of documents, while with respect to the requests for admission, CCP 2033.280(b) permits the court to enter an order deeming the matters in the requests to be deemed admitted.

Defendant has filed an opposition to the motions, and there is an attached Proof of Service ("POS"). However, the POS is defective in that it indicates her opposition and declaration were served on September 14, 2026 by multiple methods including personal service, email and some other unidentified method permitted in unlawful detainer proceedings. It does not state the address of the person serving the documents nor does it state the address where the documents were served. No email address or physical address is stated. Therefore, it is unclear whether or not Plaintiff's attorney was actually even served.

Analysis

Discovery responses are mandatory for the various types of discovery allowed or at-issue. See, CCP §§ 2017.010, 2030.210, 2031.210 and 2033.210. Due to the complete failure to respond, all objections have been waived. CCP §§ 2030.290, 2031.300 and 2033.280. Discovery responses must be properly verified (CCP §§ 2030.250, 2031.250 and 2033.240), and unverified responses are tantamount to not responding at all. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635-636.

Plaintiff's motion to deem matters admitted is granted. The genuineness of any documents and the truth of any matters in plaintiff's Requests for Admission 8 through 53 are deemed admitted.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
